

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index #

Date Filed:

TANIA HERNANDEZ,

Plaintiff

Plaintiff designates

Kings County
as place of trial

-against-

The basis of venue is
Plaintiff's Residence
And Site of Occurrence

**CITY OF NEW YORK
NEW YORK CITY POLICE DEPARTMENT
NYPD OFFICER DAVID GRIECO**

In his Official and Individual Capacities

NYPD OFFICER MICHAEL ARDOLINO (Badge No. 3101) Plaintiff

In his Official and Individual Capacities

JOHN DOES NO. 1 through 5 As Yet

Unidentified NY PD Officers, In Their

Official and Individual Capacities

Defendants

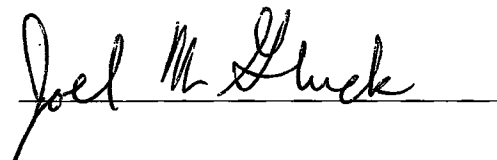
**resides at
223 Jamaica Avenue
Brooklyn N. Y.11207**

SUMMONS

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance , on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: July 9, 2020
New York N.Y.



JOEL M. GLUCK
Attorney for Plaintiff
305 Broadway Suite 1004
New York, N.Y. 10007
(347) 281 -2643

Defendants' Addresses:

CITY OF NEW YORK
One Centre Street
New York, N.Y. 10007

NEW YORK CITY POLICE DEPARTMENT
One Centre Street
New York, N.Y. 10007

NYPD Officer DAVID GRIECO
One Police Plaza
New York, N.Y. 10007

NYPD Officer MICHAEL ARDOLINO (Badge No.3101)
One Police Plaza
New York, N.Y. 10007

JOHN DOES No. 1 through No. 5
As yet Unidentified NY PD Officers believed to be assigned to
75th Precinct
One Police Plaza
New York, N.Y. 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

Index #

Date Filed

-----x
TANIA HERNANDEZ**Plaintiff,****-against-****VERIFIED COMPLAINT**

**CITY OF NEW YORK
NEW YORK CITY POLICE DEPARTMENT
NYPD OFFICER DAVID GRIECO, in his Official
And Individual Capacities
NYPD OFFICER MICHAEL ARDOLINO (Badge No. 3101)
In his Official and Individual Capacities
JOHN DOES NO. 1 through 5 As Yet
Unidentified NY PD Officers, In their
Official and Individual Capacities**

Defendants.

-----x
The plaintiffs, **TANIA HERNANDEZ** by her attorney **JOEL M. GLUCK**,
as for her verified complaint respectfully alleges as follows:

1. Plaintiff, **TANIA HERNANDEZ** was on the date of occurrence
herein and is at present a resident of the State of New York, County of Kings and
at the time of the occurrence described herein had a residence at 393 Bradford Street
Brooklyn New York 11207.

2. Plaintiff **TANIA HERNANDEZ** presently is a resident of the State
of New York County of Kings and resides at 223 Jamaica Avenue Brooklyn New
York 11207

3. That on the date of the occurrence described herein, Defendant CITY OF NEW YORK was a municipal corporation organized under the laws of the State of New York with Office of the Comptroller at 1 Centre Street New York

4. That the defendant CITY OF NEW YORK operates a municipal police department with various precincts, most particularly a New York City Police Department Precinct No. 75 at 1000 Sutter Avenue Brooklyn New York 11208

5. That on the date of the occurrence described herein, the defendant NYPD Office DAVID GRIECO, was on information and belief an employee of the New York City Police Department and was assigned to the 75th Precinct, 1000 Sutter Avenue Brooklyn New York 11208.

6. That on the date of the occurrence described herein, NYPD OFFICER MICHAEL ARDOLINO Badge No . 3101 was an employee was of the New York City Police Department and on information and belief was assigned to work at the 75th Precinct at the above address.

7. That on the date of occurrence described herein, NYPD Officers JOHN DOE Nos. 1-5 were Police Officers employed by the New York City Police Department and were assigned, on information and belief, to the 75th Precinct.

8. That at all times relevant herein, the CITY OF NEW YORK, acting through the NEW YORK CITY POLICE DEPARTMENT was responsible for the policy, practice, supervision, implementation and conduct of all NEW YORK

CITY POLICE DEPARTMENT matters and was responsible for the appointment, training, supervision and conduct of the NEW YORK CITY POLICE DEPARTMENT and for the individual Police Officer Defendants named herein.

9. At all times relevant herein the defendant, CITY OF NEW YORK was responsible for ensuring that the NEW YORK CITY POLICE DEPARTMENT personnel, including the individual NYPD Defendants, named herein, obey the laws of the United States, and New York State including the Constitution of the United States and the State of New York.

10. That the Defendant CITY OF NEW YORK assumes the risk incidental to the maintenance of a police force and the risks incidental to the conduct of individual officers, including those named herein.

11. That the CITY OF NEW YORK is responsible for the practices, policies and customs of the NEW YORK CITY POLICE DEPARTMENT as well as the hiring, screening, training, supervising, controlling, retaining and disciplining of the persons so employed by the New York City Police Department, including the individual defendants named herein.

12. At all times herein after mentioned, Defendant DAVID GRIECO was assigned to the 75th Precinct.

13. At all times hereinafter mentioned, Defendant MICHAEL ARDOLINO was assigned to the 75th Precinct.

14. At all times Police Officers, Defendants JOHN DOES No. 1 -5 was assigned to the 75th Precinct.

15. On May 10, 2017 the NEW YORK CITY POLICE DEPARTMENT employed the aforementioned police officers who were agents, servants and/or employees of the New York City Police Department.

16. At all times hereinafter mentioned, the individually named Defendants were at all times acting under color of state law, under the color of the statutes, ordinances, customs, policies and practices of the State of New York, City of New York and were also acting within the scope of and in furtherance of their employment when engaging in the conduct described herein.

17. That Defendant CITY OF NEW YORK, is liable directly and vicariously for conduct of the Individually named Defendants which while acting within the scope of their duties, inured to and was performed for their personal benefit.

18. That at all times relevant herein, Plaintiff TANIA HERNANDEZ was a lawful guest on the premises of 226 Montauk Avenue Brooklyn New York Apartment 1A and was entitled to an expectation of privacy and freedom from unlawful search and seizure of her person under the U.S. Constitution, 4th and 14th Amendment and the NYS Constitution.

19. That at all times relevant herein, Plaintiff TANIA HERNANDEZ had an expectation that on her arrest, whether lawful or unlawful, her personal property would be protected from loss and that the arresting officers and the CITY OF NEW YORK POLICE DEPARTMENT would use extraordinary care to protect said property from loss.

20. That at all times relevant herein, Plaintiff TANIA HERNANDEZ had an expectation that on her arrest, whether lawful or unlawful, her personal property would be protected from loss and that the arresting officers and the CITY OF NEW YORK POLICE DEPARTMENT would use reasonable care to protect said property from loss.

21. That on May 10, 2017, the defendant including the Individual defendants, DAVID GRIECO, MICHAEL ARDOLINO, JOHN DOE NO. 1-5, entered the premises of 226 Montauk Avenue Brooklyn New York, Apartment 1 A without search warrant or probable cause to believe a crime had been committed and without the consent of the lawful occupants of the premises.

22. That on May 10, 2017, the defendants including the Individual defendants, DAVID GRIECO, MICHAEL ARDOLINO, JOHN DOE NO. 1-5, entered the premises of 226 Montauk Avenue Brooklyn New York, Apartment 1 A by misrepresentation and trickery without search warrant or probable cause to

believe a crime had been committed and without the consent of the lawful occupants of the premises.

23. That on May 10, 2017, the defendants including the Individual defendants, DAVID GRIECO, MICHAEL ARDOLINO, JOHN DOE NO. 1-5, entered the premises of 226 Montauk Avenue Brooklyn New York, Apartment 1 A by force without search warrant or probable cause to believe a crime had been committed and without the consent of the lawful occupants of the premises.

24. That on May 10, 2017, the Defendant CITY OF NEW YORK by its agents, servants and employees, forcibly removed Plaintiff TANIA HERNANDEZ from the aforesaid premises and Plaintiff was brought in handcuffs to the 75th Precinct, arrested and taken to Central Booking and held for several days.

25. That on May 10, 2017 the Defendant CITY OF NEW YORK by its agents, servants and employees, detained and restrained the Plaintiff TANIA HERNANDEZ; Plaintiff was brought in handcuffs to the 75th Precinct, arrested and taken to Central Booking and held for several days. .

26. In effecting the restraint and detention of the Plaintiff, the said defendants, their employees, agents, servants and employees acted in concert.

27. That the Plaintiffs was arrested by the Individual Defendants named herein acting within the scope of their authority and employment and their acts were done in furtherance of the business of the Defendant CITY OF NEW YORK.

28. That the Plaintiff herein, as a result of her illegal, unwarranted restraint, detention and arrest, lost her liberty, suffered economic loss including the loss of several days pay, suffered loss of personal property including cell phones, cash and articles of sentimental value.

29. That the Plaintiff herein, as a result of the illegal, unwarranted restraint, detention and arrest, suffered mental pain. emotional distress, anguish, humiliation, shame, disgrace.

30. That months after the arrest of the Plaintiffs on May 10, 2017, and after a number of appearances in Criminal Court, all charges against the Plaintiffs were dismissed.

**AS AND FOR A FIRST CAUSE OF ACTION
(Under 42 U.S.C. § 1983)**

31. The Plaintiff repeats, reiterates and realleges each and every allegation in the preceding paragraphs as though fully set forth herein.

32. Defendants under color of state law, subjected the Plaintiff to the foregoing acts and omissions thereby depriving the plaintiff of the rights privileges and immunities secured by the Fourth, Eighth and Fourteenth Amendments to the United States Constitution including without limitation deprivation of the following rights: (a) freedom from unreasonable search of their person; (b) freedom from unreasonable seizure of their person; (c) freedom from having Police fabricate

evidence.

33. That the arrest and continued detention of the Plaintiff was effectuated by the Defendants without probable cause or any semblance of a lawful basis. Defendant at the time of this arrest and detention, knew or should have known that the allegations or any future allegations as to the Plaintiffs would be false.

34. That throughout the aforesaid period, Plaintiff was handcuffed, not formally apprised of her rights, nor for several days formally apprised of the Charges brought against her.

35. Plaintiff TANIA HERNANDEZ was arrested, detained and suffered loss of her liberty as a direct and proximate result of attempting to exercise freedom of speech by lawfully recording the wrongful arrest of others lawfully on the premises.

36. Plaintiff, was detained at a time that said defendants, their agents, servants and employees who arrested and imprisoned the Plaintiff had actual knowledge of the fact that Plaintiff had not committed any crimes and knew that there was no lawful basis for their initial or continued detention.

37. That the arrest and imprisonment of the Plaintiff by the Defendants was a false arrest false imprisonment, an unjust imprisonment done without any warrant or pretense of legal process, maliciously and without reasonable basis or probable cause.

38. Solely by reason of the foregoing and without contribution or provocation on the part of the Plaintiff, the actions of the Defendants deprived the Plaintiff of her liberty, subjected her to ridicule and derision by those aware of their arrest, caused her to be deprived of the companionship of her family and was otherwise harmed.

39. By reasons of the Defendants violation of the Plaintiff's rights under the U.S. Constitution and the New York State Constitution protected from deprivation under 42 U.S. C. § 1983, Plaintiff was caused to suffer emotional injuries mental anguish, loss of constitutional rights and economic injury as described herein.

40. That the amount of the damages sustained by the Plaintiffs exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction over the matter herein.

**AS AND FOR A SECOND CAUSE OF ACTION
(MONELL CLAIM)**

41. The Plaintiffs repeat, reiterate and reallege each and every allegation in the preceding paragraphs as though fully set forth herein.

42. All of the acts and omissions by the named and unnamed defendant police officers were carried out pursuant to overlapping policies and practices of the City of New York and the New York City Police Department were in existence at

the time of the conduct alleged herein and were engaged in with full knowledge, consent and cooperation and under supervisory authority of the Defendant CITY OF NEW YORK and New York City Police Department.

43. Defendant CITY OF NEW YORK, by their policy making agents, servants and employees authorized sanctioned and/or ratified the individual defendants' wrongful acts and/or failed to prevent or stop those acts and/or encouraged those acts to continue.

44. The actions of the individual police defendants resulted from and were taken pursuant to the following de facto policies and or well settled customs and practices of the CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT:

(a) Members of the 75th Precinct were encouraged to engage in unlawful and unconstitutional violations, including but not limited to warrantless and unauthorized searches and arrests, without probable cause, systemic submissions of false reports and observations, all done with the actual or defacto knowledge and approval of their supervisors and commanders.

(b) tacitly accept and encourage a code of silence wherein Police officers refuse and fail to reports other officers' misconduct or to tell false and incomplete stores designed to cover for other officers' misconduct.

(c) fail to discipline officers for testifying falsely, submitting false

reports, wrongfully arresting civilians for the exercise of constitutional rights.

45. The Defendant CITY OF NEW YORK, established a custom, policy or practice of encouraging, approving or tolerating the New York City Police Department's acts of misconduct, in particular, false and unauthorized search and seizure, unlawful arrest, restraint and detention.

46. The Defendants were deliberately indifferent to the use of improper procedures in the arrest and detention of civilians and established a custom, policy and practice of encouraging, approving and/or tolerating the use of improper procedures by the New York City Police Department.

47. The defendants' actions were undertaken under color of state law and would not have existed but for said defendants' use of their official power.

48. At all times relevant to the complaint herein, the defendant municipality, CITY OF NEW YORK, had de facto policies, practices, customs and usages, including but not limited to the improper and inadequate supervision of the police officers of the 75th Precinct operating in plainclothes in the County of Kings which were a direct and proximate cause of the unconstitutional conduct alleged herein.

49. At all times relevant to the complaint herein, defendant CITY OF NEW YORK, failed to properly train, screen, supervise or discipline its employees and police officers, including individual defendants named herein and failed to

inform the individual defendants' supervisors of their need to train, screen, supervise or discipline the individual defendants.

50. The policies, practices, customs and usages and the failure to properly train, screen, supervise or discipline were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of the Plaintiffs' constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution.

51. As a result of the foregoing, the Plaintiffs suffered emotional distress and were otherwise damaged and injured.

52. That the amount of the damages sustained by the Plaintiffs exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction over the matter herein.

**AS AND FOR A THIRD CAUSE OF ACTION
(MISHANDLING OF A BAILMENT)**

53. The Plaintiff repeats, reiterate and re alleges each and every allegation in the preceding paragraphs as though fully set forth herein.

54. That the Defendants wrongfully arrested the Plaintiffs on May 10, 2017 and that the Defendants seized and held the Plaintiffs' property including cell phones, credit cards, cash as incidental to and part of the defendants' arrest procedure and failed to voucher and record said property

55. That as to the Plaintiffs' property, the Defendants were bailees required to use extraordinary care in the safeguarding of Plaintiffs' property.

56. That as to the Plaintiffs' property the Defendants were bailees and required to use reasonable care in the safeguarding of the Plaintiff's property

57. That the property seized and held by the Defendants as bailees was lost, stolen and misplaced and not returned to the Plaintiffs causing the latter injury.

58. That the Defendants failed to use extraordinary care in safeguarding the Plaintiffs' property entrusted to them as bailees resulting in its loss and are liable to the plaintiffs.

59. That the Defendants breached their contractual obligation to maintain the property entrusted to them, failed to use reasonable care and were negligent, reckless and careless in the handling of the property entrusted to them as bailees and are liable to the plaintiffs.

60. That the Defendants are liable to the Plaintiff's for the breach of their duties as bailee and their improper and negligent handling of the Plaintiff's property in an amount to be determined by the Court.

61. That the Plaintiff's damages as a result of the defendants breach of their duties as bailees, exceeds the monetary limit of all lower courts that would otherwise have jurisdiction over the claims herein.

62. That the Plaintiff demands jury trial of the causes of action described herein.

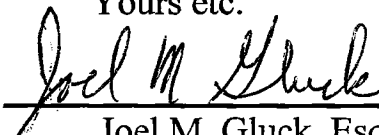
63. That the damages exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction over the claims described herein.

64. That the plaintiff demands punitive damages to the extent permitted by law in an amount to be determined by the Court.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First, Second, Third Causes of Action in an amount to be determined by the Court together with the costs and disbursements of this action

Dated: New York, New York
July 9, 2020

Yours etc.

A handwritten signature in cursive script, reading "Joel M. Gluck", written over a horizontal line.

Joel M. Gluck, Esq.
Attorney for Plaintiff
305 Broadway Suite 1004
New York, N.Y. 10007
Tel. 347 281 2643
Fax (212) 619 6701

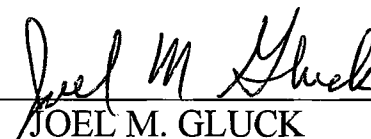
VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK)

The undersigned, an attorney duly admitted to practice in the courts of the State of New York, hereby affirms under the penalties of perjury:

Affirmant has read the foregoing SUMMONS and COMPLAINT and knows the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief, and as to those matters, deponent believes it to be true; and the reason this verification is made by the affirmant and not by the plaintiff is because the plaintiff is not within the county where affirmant has his office. The grounds for affirmant's knowledge are communications with the plaintiff and plaintiff's records which affirmant has reviewed.

Dated: New York, N.Y.
July 9, 2020



JOEL M. GLUCK
Attorney for Plaintiff
Tania Hernandez

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

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TANIA HERNANDEZ

Plaintiff,

-against-

**CITY OF NEW YORK
NEW YORK CITY POLICE DEPARTMENT
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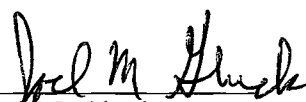
SUMMONS AND VERIFIED COMPLAINT

LAW OFFICES OF JOEL M. GLUCK

Attorneys for Plaintiff(s)
305 Broadway Suite 1004
New York, N.Y. 10007
Telephone: 347-281- 2643
Fax No. 212 619-6701

Pursuant to 22 NYCRR130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: New York, New York
July 9, 2020


Joel M. Gluck